

26STCV00400 26STCV00400

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Case Number: 26STCV00400 Hearing Date: July 31, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Motion to Compel Enforcement of Pre-Litigation Settlement Agreement

The Motion to Compel Enforcement of

Pre-Litigation Settlement Agreement filed by Defendant is denied.

BACKGROUND

Plaintiffs Maria Antonia Cruz De Amezcua

(Maria Amezcua) and Juan Carlos Amezcua (Juan Amezcua) (collectively,

"Plaintiffs") filed this action against Defendant Michael Patrick

Carroll (Defendant), alleging that Defendant made an unsafe lane change into

Plaintiffs' vehicle while fleeing a police pursuit and left the scene without

rendering aid. (Salgado Decl. ¶¶ 6, 7, Ex. 1.)

The causes of action are: (1) Motor Vehicle

Negligence; (2) General Negligence; and (3) Loss of Consortium.

Before the action was filed, Defendant's

insurer and Plaintiffs' counsel's office exchanged settlement communications

through Progressive Insurance Company claims specialist Donna Forte and Ms.

Valadez, a paralegal at Plaintiffs' counsel's firm who is not an attorney.

(Forte Decl. ¶¶ 3, 11; Salgado Decl. ¶ 3.) Defendant contends that those

communications produced an oral settlement of Juan Amezcua's claim for \$40,000

during a September 24, 2025 telephone call, and a written settlement of Maria

Amezcua's claim for \$42,750 through a November 7, 2025 email exchange. (Forte

Decl. ¶¶ 5, 12, 13.) Ms. Forte transmitted a release for each claim, and

neither release was returned signed. (Forte Decl. ¶¶ 6, 9, 13, 17, Exs. A, B.)

Plaintiffs filed this action on January 7, 2026. (Salgado Decl. ¶ 7, Ex. 1.) Defendant's Answer did not plead settlement, release, or accord and satisfaction. (Salgado Decl. ¶ 8, Ex. 2.) On July 30, 2026, the Court granted Defendant leave to amend the Answer to allege settlement as an affirmative defense.

Defendant filed a Motion to Compel Enforcement of Pre-Litigation Settlement Agreement. Plaintiffs filed an Opposition.

LEGAL STANDARD

Settlements are contracts. A settlement that falls outside Code of Civil Procedure section 664.6 is enforced according to ordinary contract law rather than under any special settlement doctrine. (*Nicholson v. Barab* (1991) 233 Cal.App.3d 1671, 1681 (*Nicholson*).)

Section 664.6 provides a summary procedure that applies only to settlements stipulated by "parties to pending litigation," either in a writing they signed outside the court's presence or orally before the court; on motion, the court may then enter judgment on the settlement's terms. (Code Civ. Proc., § 664.6, subd. (a).)

That procedure is not the only avenue of enforcement. "The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created. [Citation.] Settlement agreements may also be enforced by motion for summary judgment, by a separate suit in equity or by amendment of the pleadings to raise the settlement as an affirmative defense." (*Nicholson*, *supra*, 233 Cal.App.3d at p. 1681.)

Those three avenues predate the statute. Before section 664.6 was enacted in 1981, the prevailing view held them to be the only ones available, reasoning that a motion to enforce a settlement rests on facts outside the pleadings and so had to be handled as a summary judgment motion, grantable only where the papers showed no triable issue of fact. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 584-585 (*Levy*) (superseded by statute on other grounds in *Greisman*

v. FCA US, LLC (2024) 103 Cal.App.5th 1310, 1326).) A competing line of decisions allowed such a motion in the narrower circumstance where neither the fact of settlement nor its terms was reasonably disputed. (Id. at p. 585.)

EVIDENTIARY OBJECTIONS

Plaintiffs object to paragraphs 2, 5, 13, 18, 20, and 21 of the Declaration of Donna Forte. The disposition of the Motion does not rest on any of the objected-to material, and the Court declines to rule on the objections.

ANALYSIS

I. Procedural Vehicle

Defendant asks the Court to compel performance of two settlements said to have been formed before this action was filed and, on that basis, to dispose of the Complaint. (Motion, p. 2:3-7; Opposition, p. 1:24-25.)

The Motion identifies no statute authorizing that relief. Defendant states that it is brought under the basic principles of California contract law. (Notice of Motion, p. 2:1-2.) Section 664.6 reaches only settlements stipulated to by parties to pending litigation, and no litigation was pending when the communications at issue occurred. (Code Civ. Proc., § 664.6, subd. (a); Salgado Decl. ¶ 7; Forte Decl. ¶¶ 5, 12, 13.) Plaintiffs read Defendant's reliance on general contract principles as a concession that section 664.6 has no application here, and the Reply does not dispute that reading. (Opposition, p. 1:22-25.)

What remains are the three procedures California recognizes for enforcing a settlement outside section 664.6: a motion for summary judgment, a separate suit in equity, or amendment of the pleadings to raise the settlement as an affirmative defense. (Nicholson, *supra*, 233 Cal.App.3d at p. 1681.) Defendant has taken the third. The Court granted leave to amend the Answer, and settlement is now pleaded as an affirmative defense in this action.

The amendment supplies a pleading. It does not supply a procedure for adjudicating what the pleading alleges. Determining on declarations whether the parties formed the two settlements, and disposing of the Complaint on that determination, is summary adjudication in substance whatever the Motion is called. That is the reason the recognized routes are limited as they are: a nonstatutory motion to enforce a settlement rests on facts outside the pleadings, and such a motion was long held to require treatment as one for summary judgment, grantable only where the papers showed that no triable issue of fact remained. (Levy, supra, 10 Cal.4th at pp. 584-585.) The incidents of that showing are absent here. There is no separate statement of undisputed material facts, no allocation of the moving party's burden, and no occasion for Plaintiffs to seek a continuance to complete discovery under Code of Civil Procedure section 437c, subdivision (h).

Because no procedure authorizes the relief the Motion seeks, the Court does not reach the parties' arguments on offer, acceptance, and consideration, on Ms. Valadez's actual or ostensible authority, on whether execution of the releases was a condition precedent or the release terms material, on the effect of counsel's January 6, 2026 email, or on the scope of the disposition Defendant requests. Accordingly, the Motion is denied.

CONCLUSION

Defendant's Motion to Compel Enforcement of Pre-Litigation Settlement Agreement is denied.